Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, January 23, 2023

Alternative formats available upon request by contacting:
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Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		J. Dies
		S. Lee
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 7:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of the Minutes

Moved by: L. Bower
Seconded by: M. Crawford

That the following minutes of previous Council meetings be adopted:

- Regular Meeting of December 12, 2022;
- Special Meeting of January 5, 2023;
- Closed Meeting of January 5, 2023;
- Special Meeting of January 10, 2023; and
- Closed Meeting of January 10, 2023

CARRIED

With the consent of Council Members, items 5.1 and 5.2 were brought forward in the order of business.

5. Delegations, Presentations, and Public Meetings

5.1 Delegation & Proclamation: Durham Region Hospice Awareness Day

Eva Reti, Chair Durham Region Hospice – Whitby and Chair VON Durham Hospice Services, delivered a verbal presentation regarding Durham Region Hospice Awareness. E. Reti provided an update on the residential hospice in Whitby and discussed project timelines, funding, project budget, increased construction costs, additional fundraising efforts, cost savings and efficiencies, and enhanced design elements namely the addition of patios to resident rooms.

Mayor Collier presented the proclamation certificate to E. Reti and proclaimed January 29, 2023 as Durham Region Hospice Awareness Day in the Town of Ajax.

Council Members sought clarification regarding the Whitby location. E. Reti noted that the Whitby hospice is located near the intersection of Prince of Wales Drive and Crawforth Street, Whitby.

5.2 **Presentation: Recognition of Mixed Ability Oshawa Vikings**

Mayor Collier welcomed members of the Mixed Ability Oshawa Vikings and recognized their success in Cork, Ireland in June 2022 noting that the team placed second at the Mixed Ability Rugby World Cup. Mayor Collier noted that the Mixed Ability Sport Model welcomes players of all abilities and promotes meaningful inclusion. Mayor Collier congratulated the team and their coaching staff on their victory in Cork, Ireland.

Mayor Collier presented the Mixed Ability Oshawa Vikings with a congratulatory certificate.

John Watkins, President, Vikings Rugby Club and Coach, Mixed Ability Oshawa Vikings, provided an overview of the Mixed Ability program and highlighted successes from the event in Cork, Ireland. Elliot Smith, Co-Captain, Mixed Ability Oshawa Vikings discussed his experiences with the Mixed Ability Oshawa Vikings and the Mixed Ability Sport Model.

Council Members asked questions regarding the concept of mixed abilities. Malcolm Hooper, Co-Captain, Mixed Ability Oshawa Vikings, responded to the question from Council Members.

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no items of correspondence had been received regarding the contents of the meeting agenda. Four requests to ask questions in relation to agenda item 9.1 were received.

Amanda Downs, Ajax resident, expressed support for the motion and discussed housing shortages, economic growth, commercial development, increased traffic congestion, job-housing proximity, tax rates, zoning of the subject lands, and time-consuming rezoning processes.

A. Downs asked if there are safeguards in place to ensure that the proposed development is developed as described. Mayor Collier and Stev Andis, Manager of Planning, responded to the question from Ms. Downs.

Members of Council thanked Ms. Downs for her questions.

Eric Novak, Ajax resident, discussed time-consuming rezoning processes, Minister's Zoning Order (MZO) framework, MZO controversy, housing shortages, advantages to higher density living and mixed-use development, and community engagement. E. Novak voiced support for the motion, and responsible and sustainable development.

E. Novak asked questions regarding timelines associated with the Municipal Comprehensive Review (MCR) process vs the MZO process, and rationale for why a Council Member, if any, would not support the motion. Council Members, Geoff Romanowski, Director of Planning & Development Services, and Sean McCullough, Supervisor, Planning Policy & Research, responded to questions from Mr. Novak.

Members of Council thanked Mr. Novak for his questions.

Chris Wheeler, Ajax resident, expressed support for the motion and discussed benefits and drawbacks associated with MZOs, and the subject lands. C. Wheeler noted that density housing supports new commercial opportunities, growth for existing businesses, reduced transportation emissions, efficient use of developed land, and energy efficient homes.

C. Wheeler asked a question regarding increased traffic capacity on Harwood Avenue. Mayor Collier and G. Romanowski, responded to the question from Mr. Wheeler.

Mayor Collier asked if there is a requirement for a traffic impact study. G. Romanowski responded to the question.

Members of Council thanked Mr. Wheeler for his questions.

Dane Record, Ajax resident, expressed support for the motion and discussed mixed-use development inventory, Town growth, high-rise community living, transportation strategies, and affordable housing. D. Record noted that the MZO planning tool will address housing shortages, provide opportunities for business growth, and expedite development.

D. Record asked a question related to MZO public consultation opportunities. Mayor Collier responded to the question from Mr. Record.

Council Members asked questions regarding affordable housing and rent-geared-to-income housing. Mr. Record responded to questions from Council Members.

Members of Council thanked Mr. Record for his questions.

With the consent of Council Members, item 9.1 was brought forward in the order of business.

9. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Regional Councillor Lee assumed the Chair.

9.1 Accelerating Development of Thousands of New Housing Units

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding requirements for a developer to comply with prescribed MZO regulations, Town of Ajax housing targets imposed by the Ontario government, number of active intensification projects, Greenbelt development, public consultation requirements, school bus access for 250 Rossland Road East, traffic impact study requirements, community benefits, development charges, timelines associated with the MZO process vs the MCR process, opportunities to mandate inclusionary zoning, affordable housing guarantees, and opportunities for a developer to submit a rezoning application and appeal the decision to the Ontario Land Tribunal (OLT) through the MCR process. G. Romanowski, S. Andis, and Mayor Collier, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS the Ontario government has recognized that there is a housing crisis and has established a goal to have 1.5 million homes built in the next ten (10) years, and has additionally set a specific target of 17,000 new homes for the Town of Ajax by 2031;

AND WHEREAS on February 11, 2021, Ajax Council supported five (5) Employment Area Conversion Requests to advance residential growth in the Town;

AND WHEREAS these requests were endorsed by Durham Region Council on December 22, 2021 for inclusion within a new Regional Official Plan;

AND WHEREAS up to 4,100 housing units and 50 jobs per hectare could be created through developments proposed in the following Employment Area Conversion Requests:

a) CNR-07 - 8.8 hectares - located at the southeast corner of Salem Road North and Kerrison Drive East,
b) CNR-15 - 2.99 hectares - located at 1401 Harwood Avenue North,
c) CNR-19 - 3.8 hectares - located at 250 Rossland Road East,
d) CNR-20 - 0.69 hectares - located at 650 Beck Crescent, and
e) CNR-33 - 1.11 hectares - located at 1541 Harwood Avenue North;

AND WHEREAS these lands are located within an existing Settlement Area Boundary;

AND WHEREAS the development of these urgently needed housing units could be delayed for years while final approvals are sought;

AND WHEREAS Durham Region's Official Plan process is in question due to changes to the regional planning framework implemented by the More Homes Built Faster Act, 2022;

AND WHEREAS by accelerating the timeline, landowners can take advantage of developing at today's costs and interest rates, while conversely, further delaying the process could put development at risk due to the unknown future rate of inflation;

AND WHEREAS through inclusion in the Durham Region Official Plan process, these parcels have been subject to review and public consultation;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council requests the Minister of Municipal Affairs and Housing enact Minister's Zoning Orders (MZOs) as follows:

    a. CNR-07 to permit a mixed-use development with approximately 2,873 apartment dwelling units and a minimum of 40,000 m² non-residential gross floor area within multiple buildings up to a maximum height of 25 storeys;
    b. CNR-15 to permit a residential development with approximately 150 townhouse dwelling units with a minimum height of 3-storeys;
    c. CNR-19 to permit a mixed-use development with approximately 800 apartment dwelling units and a minimum of 9,300 m² non-residential gross floor area within buildings up to a maximum building height of 25 storeys;
    d. CNR-20 to permit a mixed-use development with approximately 200 apartment dwelling units and a minimum of 5,400 m² non-residential gross floor area within one building with a maximum height of 25 storeys; and
    e. CNR-33 to permit a residential development of between 33 and 77 townhouse dwellings units;

2. Affordable and below market rent options shall be included in the housing mix where feasible;

3. Council requests the Ministry of Municipal Affairs and Housing engage Town of Ajax planning staff to establish site specific development standards incorporating Town of Ajax Official Plan policies and other technical elements to ensure land use compatibility, good urban design, and appropriate project phasing;

4. Should the negotiation between all parties not achieve the outcomes in clause 1 and 2, that specific MZO request not move forward;

5. Council be empowered to request the revocation of any MZO approved in response to this motion if a site plan application or plan of subdivision application is not submitted within one year of the issuance of the MZO;

6. Staff be directed to deliver a presentation to Council detailing the contents of MZOs issued by the Minister in response to this motion; and

7. This motion be circulated to the Minister of Municipal Affairs and Housing Steve Clark, Ajax MPP Patrice Barnes, and Durham Region Chair John Henry.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Regional Councillor Crawford, Councillor Henry, Councillor Tyler Morin, Regional Councillor Lee

Opposed: Councillor Bower, Regional Councillor Dies

Mayor Collier resumed the Chair.

Council recessed at 9:05 p.m.

Council resumed at 9:15 p.m.

5. Delegations, Presentations, and Public Meetings

5.3 Presentation: 2023 Allocations – Ajax Partnership Fund

Kassandra Cruciano, Senior Advisor, Grants, Partnerships & Strategic Initiatives, delivered a presentation reviewing the contents of the written report and recommendations contained therein K. Cruciano provided an overview of the framework for the Ajax Partnership Fund and identified goals of the renewed program. K. Cruciano reviewed project timelines, summary of applications for the 2023 program, application categories, types of applicants, scoring matrix, 2023 allocations by tier, and next steps.

Council Members asked questions regarding timelines associated meeting unsuccessful applicants and if funding for unsuccessful applicants is guaranteed for the next intake. K. Cruciano responded to questions from Council Members.

With the consent of Council Members, item 7.4.1 was brought forward in the order of business.

7. Reports

7.4 Departmental Reports

7.4.1. CAO-2023-01: 2023 Allocations – Ajax Partnership Fund

Moved by: M. Crawford
Seconded by: J. Dies

That Council receive this report for information.

CARRIED

6. Correspondence

Members separated correspondence items 6.23 and 6.24 for discussion.

Moved by: S. Lee
Seconded by: N. Henry

That the balance of the report (Items 6.1, 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 6.8, 6.9, 6.10, 6.11, 6.12, 6.13, 6.14, 6.15, 6.16, 6.17, 6.18, 6.19, 6.20, 6.21, 6.22, 6.25 and 6.26) dated January 23, 2023 containing Items of Correspondence be received for information.

CARRIED

Items 6.23 and 6.24

Council Members expressed support for the motions citing similar concerns with Bill 23, namely the definition of affordable housing, the definition of affordability being tied to a percentage of market rates, and the replace and loss of development charges.

Moved by: S. Lee
Seconded by: R. Tyler Morin

That Item 6.23 (“City of Cambridge – Opposition to Bill 23, More Homes Built Faster Act”) and Item 6.24 (“City of Kingston – New Motion 2 – Bill 23, More Homes Built Faster Act, 2022”) of the Correspondence Report be endorsed.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, January 9, 2023

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the Community Affairs & Planning Committee Report dated January 9, 2023, be adopted.

CARRIED

7.2. General Government Committee Report

None

7.3 Summary of Advisory Committee Activities

None

7.4 Departmental Reports

7.4.2. FIN-2023-01: 2023 Financial Sustainability Plan Reserve Policy Updates

Council Members asked questions regarding spending cap guidelines and targets, allocation of interest income, capital reserve funds, and opportunities to allocate additional interest income from the operating budget to a Stormwater Maintenance Reserve or other reserve. Dianne Valentim, Director of Finance/Treasurer, responded to questions from Council Members.

Moved by: S. Lee
Seconded by: L. Bower

That Council approve the FSP policy updates for the following policies:

- FIN-120 – Financial Sustainability Plan
- FIN-121 – Discretionary Reserve Administration
- FIN-122 – Discretionary Stabilization Reserves
- FIN-123 – Discretionary Capital Reserves
- FIN-125 – Discretionary Reserves

CARRIED

8. Regional Councillors' Report

Regional Council Members noted that Durham Region Transit (DRT) customers can now pay fares by tapping a PRESTO card or credit card, including credit cards linked to smartphones or smartwatches, DRT has reached an agreement with Nova Bus to procure six twelve-metre battery electric buses, and the Municipality of Clarington's clear garbage bag pilot program has been deferred to 2025.

Regional Councillor Crawford congratulated Inspector Yamada, Durham Regional Police Service (DRPS) on his retirement and applauded the efforts of West Division – DRPS.

Regional Councillor Lee noted that Regional Council proposed a 2023 property tax guideline, capping the property tax increase at 5%.

Council Members asked if the '2023 Regional Business Plans and Property Tax Supported Budget Guideline' included water services and asked why the proposed budget request from Durham Regional Police Services Board was reduced. Regional Councillor Lee responded to questions from Council Members.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the Regional Councillors' Reports of January 23, 2023 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Regional Councillor Crawford assumed the Chair.

9.2 Securing Canada's $1 Billion Investment in a Strengthened Freshwater Action Plan

Mayor Collier and Regional Councillor Dies introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: J. Dies

WHEREAS the Town of Ajax, as a member of the Great Lakes and St. Lawrence Cities Initiative, supports: protecting source water, planning for climate change impacts and shoreline resilience, ensuring safe and affordable water services for all our residents, and building up a sustainable blue economy in the Great Lakes and St. Lawrence River Basin;

AND WHEREAS ensuring healthy communities and a strong economy for Canadians depend on securing Canada's source water, which includes addressing water quality issues, contaminants and pollution, supporting biodiversity and reversing wetland and fish and wildlife habitat loss and improving community knowledge to empower citizens to safeguard this essential resource;

AND WHEREAS a Freshwater Action Plan and the Great Lakes Protection Initiative it supported were first announced in the 2017 Canadian federal budget with a $44.84 million investment over five years;

AND WHEREAS the Freshwater Action Plan has combined science and action to address priorities in the Great Lakes such as preventing toxic and nuisance algae, enhancing the resilience of coastal wetlands in the Great Lakes, restoring Great Lakes Areas of Concern and supporting Canada's commitments under the Great Lakes Water Quality Agreement, among other priorities;

AND WHEREAS a commitment was made by the Liberal Party of Canada in the 2021 federal election to strengthen the Freshwater Action Plan with an historic investment of $1 billion over ten years to restore and protect large lakes and river systems starting with the Great Lakes and St. Lawrence River Basin;

AND WHEREAS the federal government only committed $19.6 million in funding in the 2022 Budget for the Freshwater Action Plan, falling short of the aforementioned commitment;

AND WHEREAS the United States has invested $1.8 billion in the Great Lakes Restoration Initiative (GLRI) since 2017 and will see accelerated funding with the Infrastructure Investment and Jobs Act;

AND WHEREAS a 2018 University of Michigan study shows that for every dollar of federal spending on GLRI projects between 2010 and 2016, yielded $3.35 in additional economic activity;

AND WHEREAS nearly half of Canada's population lives in the Great Lakes and St. Lawrence River Basin, a region that will continue to see accelerated growth, resulting in greater land and resource use pressures that will further contribute to water availability and quality issues;

AND WHEREAS the Stockholm Resilience Centre recently identified the importance of wetlands as carbon sinks and fresh water's role in climate mitigation;

AND WHEREAS the Great Lakes-St. Lawrence Collaborative outlined 30 recommendations to Environment and Climate Change Canada as part of a ten-year, $2.2 billion Action Plan 2020-2030 to protect the Great Lakes and St. Lawrence (Action Plan 2020-2030), addressing shoreline erosion, outdated infrastructure, invasive species, exposure to toxins and beach contamination, following an 18-month consultation with First Nations, nongovernmental organizations, academics and other experts;

AND WHEREAS the recommendations outlined in Action Plan 2020-2030 should serve as the basis of programming for strengthened federal action in the Great Lakes and St. Lawrence River Basin through its strengthened Freshwater Action Plan;

AND WHEREAS the newly established Canada Water Agency should play a role in accelerating the rollout of funding made available through a strengthened Freshwater Action Plan;

AND WHEREAS Freshwater Action Plan funding should largely be directed to community groups, local governments and First Nations to ensure that investments made will have the biggest local impact and empower action at the local level, rather than being held back for federal administration and operations;

AND WHEREAS it is critical to implement a strengthened Freshwater Action Plan, including accelerating a $1 billion over five years, and to creating a Canada Water Agency to consolidate and coordinate federal water efforts and support provinces and territories in addressing systemic issues impacting the viability of the Great Lakes and St. Lawrence River Basin and the communities dependent upon the region's source water;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Town of Ajax supports the Great Lakes and St. Lawrence Cities Initiative request and requests that the federal government to commit $1 billion in funding over five years for a strengthened Freshwater Action Plan in Budget 2023;

2. The Town of Ajax calls on the federal government to guide its Freshwater Action Plan funding to implement recommendations in the Action Plan 2020-2030;

3. The Town of Ajax calls on the federal government to direct priority funding under the strengthened Freshwater Action Plan to projects in the Great Lakes and St. Lawrence River Basin;

4. The Town of Ajax calls on the federal government to make municipalities eligible for future funding in programs announced under the strengthened Freshwater Action Plan; and

5. A copy of this motion be sent to the federal Deputy Prime-Minister and Minister of Finance; the Minister of Environment and Climate Change; the Parliamentary Secretary to the Minister of Environment and Climate Change (responsible for the Canada Water Agency), Ajax MP Mark Holland, and the Great Lakes and St. Lawrence Cities Initiative.

CARRIED

Mayor Collier assumed the Chair.

9.3 **No Mow May**

Councillor Bower and Regional Councillor Dies introduced the motion and reviewed its contents. Council Members sought clarification regarding the intent of the motion and asked if there are any property standard implications to residents. Councillor Bower provided clarification and responded to the question.

Moved by: L. Bower
Seconded by: J. Dies

WHEREAS “No Mow May” is a campaign launched by the botanical charity Plantlife in 2019 to encourage gardeners to not mow their lawn during the month of May, in order to let wildflowers bloom and provide nectar for pollinators such as bees, butterflies, and beetles;

AND WHEREAS “No Mow May” campaigns have been held across Ontario, including by the City of Cornwall, the Town of East Gwillimbury, and Essa Township;

AND WHEREAS in Canada, there are an estimated 6.2 million lawns that could provide habitat and enhance the abundance and diversity of wildlife including bees and other pollinators by reduced mowing, with the added benefit of reducing costs for property owners through decreased water and gas consumption and fewer GHG emissions associated with a reduction in the use of gas-powered lawn equipment;

AND WHEREAS by returning spaces to a naturalized state, wildlife habitat can be preserved beyond the month of May;

AND WHEREAS Town by-laws allow for spaces to be naturalized by plants and flowers, while requiring grass and weeds be kept below 15 centimetres;

AND WHEREAS the Town of Ajax prides itself as a leader in environmental sustainability by protecting the Greenlands System, establishing vegetation protection zones, and helping pollinators by supporting initiatives that encourage the planting of native trees, shrubs and flowering plants.

NOW THEREFORE BE IT RESOLVED THAT:

1. Operations and Environmental Services staff be directed to identify three areas (one per ward) for naturalization with work to begin in or about the month of May;

2. Corporate Communications staff be directed to raise awareness of naturalization projects being executed by the Town and urge residents to convert some of their property to a more naturalized state using native plants; and

3. Staff be directed to host a webinar in April as part of Ajax Green Living Days to educate residents about using native plants to support biodiversity and minimize water consumption.

CARRIED

9.4 **Joe Dickson Park**

Councillor Henry and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: N. Henry
Seconded by: S. Lee

WHEREAS The Town of Ajax celebrates its history through street and public space naming practices, which identify and highlight legacies important to understanding the foundations of Ajax as a community;

AND WHEREAS Louis Joseph "Joe" Dickson was a committed public servant who began his political career as a Catholic school board trustee and was first elected to Ajax Council in 1983, serving as both a local and regional councillor until 2007;

AND WHEREAS Mr. Dickson went on to represent the riding of Ajax-Pickering in the Ontario legislature from 2007 until 2018;

AND WHEREAS Mr. Dickson was also a passionate businessperson and community advocate, sponsoring more than 1200 sports teams over 55 years;

AND WHEREAS Mr. Dickson passed away on April 6, 2022 at the age of 82, resulting in an outpouring of condolences and stories of remembrance from residents and community stakeholders who knew and respected him;

AND WHEREAS in Summer 2023, an unnamed neighbourhood park within the Mulberry Meadows Subdivision (Sundial Developments) will open at the north-west corner of Ainley Road and Turnerbury Avenue and has been designed as a significant recreation focal point for the local community and will include a junior/senior playground, gazebo, fenced leash-free area, basketball court, fitness equipment, paved walkways, pedestrian seating, and other public amenities;

AND WHEREAS Council deems it appropriate to commemorate Mr. Dickson's dedication and legacy of public service to the Town of Ajax.

NOW THEREFORE BE IT RESOLVED THAT:

1. Staff be directed to name the park at Ainley Road and Turnerbury Avenue the "Joe Dickson Park"; and

2. A copy of this motion be shared with the Dickson family.

CARRIED

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Tyler Morin, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Mayor Collier

Opposed: None

10. By-laws

None

11. Notice of Motion

None

12. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including Durham Region 2023 Ontario Parasport Games February 3 – 5, 2023, a virtual community Ward 1 meeting on January 24, 2023, a virtual community Ward 3 meeting on January 24, 2023, Lunar New Year celebrated on January 22, 2023, a virtual community Ward 2 meeting on February 22, 2023, 16th Annual Durham Black History Month Celebration at J. Clarke Richardson Collegiate February 4, 2023, 8th Annual Looking Back into the Future Black History Month Conference at St. Francis Centre on February 25, 2023, and the Ajax Waterfront Erosion Mitigation Project information session hosted by Toronto Region Conservation Authority

(TRCA) on January 26, 2023.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That By-law number 03-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on January 23, 2023, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: L. Bower
Seconded by: N. Henry

That the January 23, 2023 meeting of the Council of the Town of Ajax be adjourned (10:29 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk